

23STCV24664 23STCV24664

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 23STCV24664 Hearing Date: July 8, 2026 Dept: 732

Royce Choi, et al. v. Fletcher Bend, LLC, et al.

Wednesday, July 8, 2026

CASE NUMBER: 23STCV24664

OPPOSED

Cross-Defendant Wehmer

Framing, Inc.'s Motions to

Compel Responses to Form and Special Interrogatories and Requests for

Production from Defendant and Cross-Complainant Heyday Development Corporation

Facts:

This is an action for construction defects. The Complaint alleges as follows. Plaintiffs

Royce Choi, Richard & Ana Hogben, David Lim, Clifford Ho & Janice Kim,

Benjamin Kvalo, Sang & Olivia Lee ("Plaintiffs") purchased homes built by

Defendant Fletcher Bend, LLC. (Complaint ¶¶ 3–8.) The homes were defective

in their construction. (Complaint ¶¶ 10–11.)

Procedural History: Plaintiffs

filed the Complaint on September 8, 2023, alleging one cause of action for

violation of building standards under Civil Code § 896.

Heyday

Development Corporation was added as a Doe Defendant on January 28, 2025.

Defendants Fletcher Bend, LLC and Heyday

Development Corporation filed a Cross-Complaint on June 24, 2025, against Cross-Defendants Acetek Roofing, Co., Inc., GM Plaster, G & M Plastering, Inc. Rick's Raingutter Service, and Wehmer Framing, Inc., alleging three causes of action:

1.

Equitable Indemnity

2.

Declaratory Relief

3.

Contribution

Cross-Defendant

Wehmer Framing, Inc. filed the present motions to compel on June 8, 2026.

Defendant

Heyday Development filed oppositions on June 24, 2026.

Wehmer

Framing filed replies on September 8, 2026.

Analysis

I.

MOTION TO

COMPEL

A propounding party may demand a responding party to produce documents that are in their possession, custody or control. (Code Civ. Proc., § 2031.010.) A party may likewise conduct discovery by propounding interrogatories to another party to be answered under oath. (Code Civ. Proc. § 2030.010, subd. (a).) The responding party must respond to the production demand either by complying, by representing that the party lacks the ability to comply, or by objecting to the demand. (Code Civ. Proc., § 2031.210.) The responding party must respond to the interrogatories by

answering or objecting. (Code Civ. Proc. § 2030.210, subd. (a).) If the responding party fails to serve timely responses, the propounding party may move for an order compelling responses to the production demand and interrogatories. (Code Civ. Proc., §§ 2030.290, 2031.300.)

A

party who fails to serve a timely response to interrogatories or a demand for inspection waives any objection to the demand. (Code Civ. Proc., §§ 2030.290, 2031.300.)

Cross-Defendant Wehmer Framing, Inc.

(“WFI”) moves to compel responses to Form and Special Interrogatories and Requests for Production from Defendant and Cross-Complainant Heyday Development Corporation (“Heyday”). This discovery was served on March 11, 2026, with responses due, pursuant to agreed extensions, on May 4, 2026. (Stewart Decl. ¶ 5.) No responses have been provided despite attempts by WFI’s counsel to meet and confer. (Stewart Decl. ¶¶ 6–9.)

Heyday

in opposition argues that responses have not been provided because Heyday’s counsel has lost contact with Heyday’s principal. (Opposition at pp. 3–5.)

Heyday argues that hearing on the motion should be continued pending hearing on its counsel’s motion to be relieved, now set for July 24, 2026, and the motion for leave to intervene filed by James River Insurance Company (the insurer for Heyday and Defendant Fletcher Bend LLC) now set for hearing on July 22, 2026. (Opposition at pp. 3–4.) Heyday also argues that the motions are defective because WFI did not first convene an informal discovery conference with the court. (Opposition at p. 3.)

The

motion is procedurally proper and may be granted against Heyday. First, no meet-and-confer efforts are statutorily required before bringing of a motion to compel responses, which addresses circumstances where no responses have been provided, as opposed to a motion to compel further response, where the issue is the sufficiency of the responses that have been given. (See, e.g., Code Civ. Proc. §§ 2031.300, 2031.310.) Despite this, WFI presents evidence of substantial attempts to meet and confer regarding the discovery at issue prior to bringing this motion, including requests for dates of availability regarding an IDC. (Stewart Decl. Exhs. B, D.) Thus lack of conference efforts is no basis to deny the motion.

Nor

need WFI await the results of the now-pending motion to be relieved and motion to intervene. The present motion addresses WFI's entitlement to discovery responses, which will not be affected by either of the two pending motions. Nor does Heyday explain how grating either of those two motions render the provision of responses more likely.

Accordingly,

the motion to compel is GRANTED. Heyday shall provide responses, without objection, within 30 days of this order.

1. Sanctions

The

prevailing party on a motion to compel is generally entitled to monetary sanctions, unless the court "finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. §§ 2030.290, 2031.300.) Sanctions are also mandatory against a party whose failure to serve responses to requests for admission makes the motion necessary. (Code Civ. Proc. § 2033.280, subd. (c).)

WFI

seeks \$1,184.50 in connection with the motion addressed to requests for production of documents, and \$1,369.50 in connection with the interrogatories motion, for a total of \$2,554.00, representing 12 hours of attorney work at \$185 per hour, plus two filing fees of \$74.50. (Stewart Decl. ¶ 10.) This appears to be an overcalculation of the fees sought with the interrogatories motion, which lists the same amount of time expended for it as the other motion. (Stewart Decl. ¶ 10.) Although sanctions are sought against Heyday's counsel, no sanctions are warranted against them specifically, as they have indicated that the failure to provide responses is the result of communication breakdown with the client, for which a motion to be relieved as counsel is pending.

Sanctions

are awarded against Heyday Development Corporation in the amount of \$2,369.00, to be paid within 30 days of this order.

Superior Court of California

County of Los Angeles

Department 732

ROYCE

CHOI, et al.,

Plaintiffs

v.

FLETCH BEND, LLC, et al.,

Defendants.

AND RELATED CROSS-ACTIONS

Case No.:

23STCV21664

Hearing Date: July 8, 2026

[TENTATIVE] RULING RE:

Cross-Defendant Wehmer Framing, Inc.'s Motions to
Compel Responses to Form and Special Interrogatories and Requests for
Production from Defendant and Cross-Complainant Heyday Development
Corporation.

Cross-Defendant Wehmer Framing, Inc.'s
Motions to Compel Responses to Form and Special Interrogatories and Requests
for Production from Defendant and Cross-Complainant Heyday Development
Corporation are
GRANTED. Responses to the above discovery shall be served without objection
within 30 days of this order. Sanctions are awarded against Heyday Development
Corporation in the amount of \$2,369.00, to be paid within 30 days of this
order.

Cross-Complainant to give notice.

Dated: July 8, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court